



POLICE DEPARTMENT

May 30, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208508 (Incident Date: December 5, 2022) regarding Police Officer Victor Roopnarine, Tax No. 957104 (DADS No. 2024-30347) and Police Officer Jean Polonia, Tax No. 970778 (DADS No. 2024-30318)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208508, pertaining to Police Officer Victor Roopnarine and Police Officer Jean Polonia. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said members of the service would be detrimental to the Police Department's disciplinary process.

In this case, Police Officer Polonia and Police Officer Roopnarine are alleged to have improperly ejected an individual from the transit system and failed to activate their body worn cameras in a timely manner. Both officers were assigned to a transit detail inside a Brooklyn subway station when an individual entered with his large canine on a leash and stood next to the token booth. The token booth clerk, who witnessed the interaction inside the station, stated in her CCRB interview that the individual was staring at the cops and became "super aggressive." According to her, the officers remained calm throughout and were not trying to escalate the situation. Additionally, she never observed the officers get physical with the individual and asserted in her interview that the individual started with them.

After reviewing the New York Code of Rules and Regulations (NYCRR) 1050.11, 1050.7(i), and 1050.9(h)(1), the Police Commissioner finds that both officers were authorized to eject the individual from the transit system. Specifically, the aggressive conduct as described by the token

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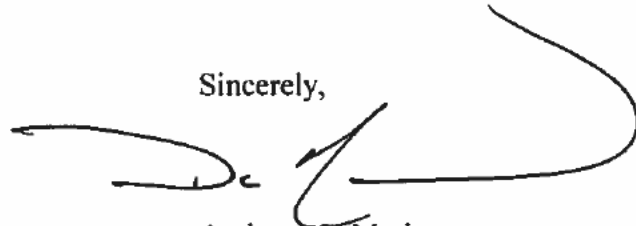
Website: <http://nyc.gov/nypd>

booth clerk could have caused an inconvenience to a reasonable person. Furthermore, the individual did not properly secure his canine as required by the NYCRR. Either violation was enough to eject the individual from the transit system.

The Police Commissioner agrees that the officers should have activated their body worn cameras upon interacting with the individual, however that procedural violation has already been addressed with training and no further penalty is warranted.¹

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Roopnarine and Police Officer Polonia for the allegations regarding the improper use of their body-worn cameras and the ejection of an individual.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', is written over a horizontal line. The signature is stylized with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

¹It should be noted that PBBN previously investigated this matter and recommended training rather than formalized discipline.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

June 4, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202208508 (Incident Date: December 5, 2022) regarding Police Officer Jean Polonia, Tax No. 970778 (DADS No. 2024-30318) and Police Officer Victor Roopnarine, Tax No. 957104 (DADS No. 2024-30347)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 30, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and impose no disciplinary action against Police Officer Jean Polonia and Police Officer Victor Roopnarine for their alleged misconducts. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that to pursue Charges and Specifications against both officers would be detrimental to the Police Department’s disciplinary process.” CCRB disagrees with this determination.

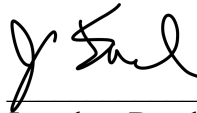
It is undisputed that § 87(2)(b) was standing inside the Bedford-Nostrand-Avenue Subway station “G” line, in Brooklyn, with his dog, and cursed at PO Polonia and PO Roopnarine. It is also undisputed that PO Polonia and PO Roopnarine then instructed § 87(2)(b) to leave the station.. As stated in their testimonies and the transit ejection report, both PO Polonia and PO Roopnarine specified that § 87(2)(b) cursing at the officers constituted the disorderly conduct, however, neither officer specified how § 87(2)(b) statements created a breach of peace beyond the officers. As per *Matter of Armell N.*, 28 Misc 3d 528, 529¹, the statements that § 87(2)(b)

¹ In *Matter of Armell N.*, 28 Misc 3d 528, 529, the courts found that that an individual who stated, “what the fuck are you looking at?” to a police officer on a subway train when there was no evidence that the individual impeded anyone’s egress or otherwise violated any provision of the transit rule did not justify an ejection from a train station. The courts also noted that “a private annoyance to an officer, in the absence of testimony showing that there was a breach of the

made to PO Polonia and PO Roopnarine did not create a disturbance past the officers, and therefore, not grounds for a lawful ejection. The potential for disturbance is not enough for the subject officers to act in this matter. Furthermore, the manner in which § 87(2)(b) “secured his” puppy is immaterial to the analysis as neither member of service cited the manner of restraint in their decision to remove § 87(2)(b).

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Polonia and PO Roopnarine in this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

peace, or that it attracted undue attention or caused consternation amongst anyone else...is insufficient to constitute disorderly conduct.”



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June 5, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
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New York, NY 10007

Re: CCRB Case No. 202208508 (Incident Date: December 5, 2022) regarding Police Officer Victor Roopnarine, Tax No. 957104 (DADS No. 2024-30347) and Police Officer Jean Polonia, Tax No. 970778 (DADS No. 2024-30318)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 4, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Victor Roopnarine and Police Officer Jean Polonia. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Roopnarine and Police Officer Polonia for the reasons expressed in my May 30, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Police Officer Roopnarine and Police Officer Polonia for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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